INDEPENDENT CONTRACTOR AGREEMENT
REF: [CONTRACT_OID]

This Independent Contractor Agreement ("**Agreement**") is entered into as of [EFFECTIVE_DATE] (the "**Effective Date**"), between:

[CLIENT_NAME], [CLIENT_ENTITY_TYPE] having its principal place of business/headquarters at [CLIENT_LEGAL_ADDRESS], email address: [CLIENT_EMAIL] ("**Client**"), and

[CONTRACTOR_NAME], [CONTRACTOR_ENTITY_TYPE] whose address is [CONTRACTOR_INDIVIDUAL_ADDRESS], email address: [CONTRACTOR_EMAIL] ("**Contractor**")

Client and Contractor are each a "**Party**" and together the "**Parties**".

a. The Client is a digital solutions company and is looking for a professional with the skills to carry out website development services (including design, front-end and back-end development, content management systems, e-commerce, integrations, testing, deployment and maintenance) as listed in the Statement of Work executed between the Parties from time to time and attached hereto.
b. The Contractor declares that the Contractor possesses the necessary professionalism, having gained considerable experience in the field, and is willing to carry out the activities listed in the Statement of Work that the Client intends to entrust to the Contractor in total autonomy.
c. The Parties intend to establish a collaboration of an autonomous nature, both from a formal and substantial perspective, excluding any intervention by the Client regarding the modalities of performance and the time of execution of the Services and any exclusive obligation on the part of the Contractor.
d. This Agreement excludes any subjection to the power of direction or control of the personnel with whom, by reason of the Services, the Contractor may come into contact.

Client and Contractor desire to have Contractor perform services for Client, subject to and in accordance with the terms and conditions of this Agreement.

NOW, THEREFORE, the Parties agree as follows:

1. SERVICES

1.1 Statements of Work. From time to time, Client and Contractor may execute one or more statements of work, substantially in the form attached as Exhibit A, detailing the specific services to be performed by Contractor (as executed, a "***Statement of Work***"). Each Statement of Work will expressly refer to this Agreement, will form part of this Agreement and will be subject to its terms. A Statement of Work may be amended only by a written agreement signed by each Party's authorised signatory.

1.2 Performance of Services. Contractor will perform the services described in each Statement of Work (the "***Services***") in accordance with the terms of that Statement of Work and this Agreement. The Services consist of website development and related work, which may include UI/UX design, front-end and back-end development, CMS and e-commerce set-up, third-party integrations, quality assurance testing, deployment, and post-launch support, as specified in the Statement of Work.

It is the express intention of Client and Contractor that Contractor performs the Services as an independent contractor for Client. Contractor acknowledges that Contractor is obliged to report as income all compensation received under this Agreement, and agrees to provide Client with Contractor's National Tax Number (NTN) or, where Contractor is not registered, such tax and identity details as Client reasonably requires. Contractor agrees that Contractor meets all tests set out in applicable law with respect to independent contractor status, including the labour and social security laws of the Islamic Republic of Pakistan and any other applicable local, provincial or federal law.

Contractor will determine, in Contractor's sole discretion, the manner and means by which the Services are accomplished, subject to the requirement that Contractor will at all times comply with applicable law and with any compliance policies drawn to Contractor's attention insofar as they are applicable to independent contractors.

1.3 Equipment and Facilities. Unless otherwise provided in a Statement of Work, Contractor will perform the Services at Contractor's own offices, place of business or any other location of Contractor's choosing, using Contractor's own instruments, equipment and tools. Contractor will determine the time, place and order in which the Services are performed, in accordance with any milestones or timeline in a Statement of Work.

1.4 Subcontractors. Contractor may appoint a suitably skilled substitute in place of the initial personnel and may subcontract the performance of the Services, provided that Client gives prior written consent after being satisfied that the substitute or subcontractor has the necessary skills, expertise and resources, and that Contractor ensures the substitute or subcontractor abides by the same obligations as Contractor under this Agreement regarding confidentiality, intellectual property, data protection, anti-bribery, anti-corruption and anti-tax avoidance. If Client so requires, Contractor will procure direct undertakings from the substitute or subcontractor on these matters. Contractor remains bound by all obligations in this Agreement, remains responsible for the remuneration of the substitute or subcontractor, and will keep Client indemnified against any reasonable costs, claims or expenses incurred by Client as a result of the use of such subcontractors.

2. PAYMENT

2.1 Fees. As Contractor's sole compensation for the Services, Client will pay Contractor the fees specified in each Statement of Work in accordance with the terms set out therein. If specified in a Statement of Work, Client's payment obligation will be subject to Contractor's completion of the Services or achievement of milestones to Client's reasonable satisfaction.

2.2 Expenses. Unless otherwise provided in the Statement of Work, Client will reimburse Contractor for reasonable travel and related expenses incurred in performing the Services, provided that each expense is approved in advance in writing by an authorised representative of Client. As a condition of reimbursement, Contractor will submit reasonable evidence that the amount was reasonable and necessary to the Services.

2.3 Payment Terms. Payment terms will be set out in the Statement of Work. Payments will be made through the Deel platform as set out in Sections 2.4 and 2.5. The Parties will use commercially reasonable efforts to resolve any payment dispute promptly.

2.4 Client acknowledges that Contractor has appointed Deel, Inc, a Delaware registered company having its headquarters at 425 1st St, San Francisco, California, 94105, United States ("***Deel***") as Contractor's limited

payment agent for the purpose of facilitating the receipt of payments made by Client for services provided in connection with this Agreement and each Statement of Work, using a payment method supported by Deel or by one of Deel's Payment Service Providers, and the disbursement of those payments to Contractor.

2.5 Client agrees to make all payments to Contractor using one of the payment methods supported by the Deel platform. Client and Contractor represent and warrant that they have carefully read, understood and accepted the Deel platform terms and conditions (the "***Deel Terms and Conditions***") available on Deel's website (www.letsdeel.com/terms). In the event of any conflict between this Agreement and the Deel Terms and Conditions, this Agreement will govern. Both Parties acknowledge that acceptance of the Deel Terms and Conditions by each Party is a precondition to entering into this Agreement.

2.6 Taxes and Withholding. All fees are stated exclusive of any sales tax or similar indirect tax, which will be added where applicable and shown on the invoice. Client may deduct and pay over to the relevant authority any withholding tax required by applicable law (including the Income Tax Ordinance, 2001), and will on request provide Contractor with evidence of the deduction. Amounts so deducted and paid will be treated as paid to Contractor. Contractor is responsible for all other taxes on Contractor's income.

2.7 Personal Data of Contractor. Client will collect and process Contractor's personal data in accordance with its privacy notice and applicable law.

3. RELATIONSHIP OF THE PARTIES

3.1 Independent Contractor. Contractor's relationship with Client will be that of an independent contractor acting as a service provider, and not that of an employee, worker, agent or partner of Client. Contractor will not be entitled to any statutory or other benefits payable to employees or workers, including retirement or pension benefits, social security contributions, provident fund or gratuity payments, leave or sick pay, or participation in any plans or arrangements made available by Client to its employees.

3.2 No Authority. Contractor has no authority to enter into agreements that bind Client or create obligations on its part without Client's prior written authorisation. Contractor will not hold itself out as having any authority to bind Client, and will make this absence of authority clear in its dealings with third parties.

3.3 Status. This Agreement is for the provision of services as an independent contractor and does not create an employment relationship. Contractor is solely responsible for (a) payment of all taxes, salaries, benefits, social security contributions, withholding taxes, workers' compensation, insurance, and any other liability, deduction, contribution, assessment or claim arising from the performance of the Services and required by any government agency or competent authority; and (b) compliance with all applicable labour and employment requirements with respect to Contractor's self-employment, sole proprietorship or other form of business organisation. Contractor will ensure that none of its employees holds themselves out as an employee of Client or as having authority to bind Client.

3.4 Liability. Contractor will be liable for, and will indemnify Client, its affiliates and their directors, officers and employees against, all losses, liabilities, costs (including reasonable legal fees), penalties, damages and expenses arising directly or indirectly from any breach of this Agreement or any Statement of Work by Contractor or any subcontractor (including data protection obligations); any act or omission of Contractor or its subcontractors, or any failure to perform the Services in accordance with applicable law; any misrepresentation by Contractor regarding its status or the Services; or any claim that Client's use of the deliverables or Services infringes a third party's rights. Contractor will maintain suitable insurance where appropriate for the Services. Contractor acknowledges that Client does not carry any liability insurance on Contractor's behalf, and will provide copies of its insurance on reasonable request.

3.5 Indemnification for Taxes and Worker Status. Contractor will indemnify and hold Client, its affiliates and their directors, officers and employees harmless from all damages, liabilities, losses, penalties, fines, expenses and costs (including reasonable legal fees) arising from any obligation imposed by a government authority or court on Client to pay withholding taxes, social security, unemployment or disability insurance, or retirement or pension benefits in connection with compensation paid to Contractor under this Agreement. In the event of any violation by Contractor of applicable law relating to this Section 3.5, Contractor will indemnify Client in respect of:

a. payment of all taxes, salaries, benefits, social security contributions, insurance, retirement or pension benefits and any other liability, deduction, contribution, assessment or claim arising from the Services and required by any government agency (except where recovery is prohibited by law), and all reasonable costs, penalties, fines or interest incurred by Client as a consequence of Contractor's failure to pay any amount due, except where that failure was caused directly by Client's negligence or intentional misconduct; and

b. any liability arising from any employment-related claim or claim based on worker status (including reasonable legal fees) brought by Contractor or any subcontractor against Client in connection with the Services.

3.6 Set-off. Client may, in its sole discretion, satisfy any indemnity under Sections 3.1, 3.4 and 3.5 (in whole or in part) by deduction from any payment due to Contractor.

3.7 No Expectation of Renewal. Contractor has no expectation that this Agreement will be renewed on its expiry or termination, and no representation regarding renewal is valid or binding on Client unless recorded in writing and signed by authorised representatives of both Parties.

4. OWNERSHIP

4.1 Disclosure of Work Product. Contractor will, as an integral part of the Services, disclose in writing to Client all inventions, products, designs, drawings, notes, documents, information, documentation, improvements, works of authorship, processes, techniques, know-how, algorithms, specifications, software, source code, databases, user interfaces, models, prompts, workflows, automations and other materials of any kind that Contractor (or any subcontractor) may make, conceive, develop or reduce to practice, alone or jointly with others, during the term of this Agreement that relate to the subject matter of, or arise out of or in connection with, the Services, whether or not eligible for patent, copyright, trade secret, trademark or other legal protection (collectively, "***Contractor Work Product***"). Contractor Work Product includes all deliverables that Contractor undertakes to provide to Client.

4.2 Ownership of Contractor Work Product. All Contractor Work Product will be the sole and exclusive property of Client. Contractor hereby irrevocably transfers and assigns to Client, and agrees to irrevocably transfer and assign, all right, title and interest in and to Contractor Work Product, including all worldwide patent rights, copyright, trade secret rights, trademarks, know-how and all other intellectual or proprietary rights (collectively, "***Intellectual Property***"). At Client's request and expense, during and after the term, Contractor will assist and cooperate with Client, and will execute documents and take such further acts as Client reasonably requests, to enable Client to acquire, transfer, maintain, perfect and enforce its Intellectual Property. Contractor appoints the officers of Client as its attorney-in-fact to execute documents on its behalf for this limited purpose, and agrees to execute a separate power of attorney if so instructed. Contractor will not incorporate any third party's invention, work, trade secret or other proprietary material into Contractor Work Product without Client's prior written permission.

4.3 Moral Rights. To the fullest extent permitted by applicable law, Contractor irrevocably assigns to Client, and waives and agrees never to assert, any Moral Rights (as defined below) that Contractor may have in any Contractor Work Product, during and after the term of this Agreement. "***Moral Rights***" means any right to claim authorship of a work, to object to or prevent the modification or destruction of a work, to withdraw from circulation or control publication or distribution of a work, and any similar right existing under law or treaty anywhere in the world. To the extent Moral Rights cannot be assigned, Contractor waives and agrees not to enforce them to the extent permitted by law.

4.4 Related Rights. To the extent Contractor owns or controls any patent, copyright, trade secret, trademark or other intellectual or proprietary right that may block or interfere with, or be required for, Client's exercise of the rights assigned under this Agreement ("***Related Rights***"), Contractor grants Client a non-exclusive, royalty-free, irrevocable, perpetual, transferable, worldwide licence (with the right to sublicense) to make, have made, use, sell, copy, modify, create derivative works of, distribute, display and perform any products, software, methods or materials covered by such Related Rights, to the extent necessary to enable Client to exercise all rights assigned under this Agreement.

4.5 Contractor acknowledges that, except as provided by law, no further fees or compensation other than those provided for in this Agreement are due or may become due to Contractor in respect of this Section 4.

4.6 Nothing in this Agreement precludes Client from exercising any of its rights and privileges as sole and exclusive owner of the Intellectual Property assigned to it. Client may decide not to file any patent application or copyright registration, may maintain the Intellectual Property as secret and confidential, or may abandon it or dedicate it to the public. Contractor has no authority to exercise any rights with respect to Intellectual Property owned by or assigned to Client.

4.7 Exploitation. If any part of the Services, Intellectual Property or information provided under this Agreement is based on, incorporates, or is an improvement or derivative of, or cannot reasonably and fully be made, used, reproduced, distributed or otherwise exploited without using or violating technology or intellectual property rights owned by or licensed to Contractor (or any person involved in the Services) and not assigned hereunder, Contractor grants Client and its successors a perpetual, irrevocable, worldwide, royalty-free, non-exclusive, sublicensable right and licence to fully exploit and exercise all such technology and intellectual property rights in support of Client's exercise or exploitation of the Services, Intellectual Property and any other work or information provided under this Agreement (including any modifications, improvements and derivatives).

4.8 Website Deliverables and Access. Contractor Work Product includes all source code, designs, graphics, text, databases, configuration files, build scripts and documentation produced for any website or web application. Contractor will deliver complete, commented and working source code and assets to Client's designated repository or storage on completion of each milestone and on request. Contractor will not retain any administrator access, credentials, hosting, domain or third-party account control relating to Client's or Client's customers' websites, and will hand over all such access promptly on request or on termination. Contractor will not use Client's or its customers' accounts, data or content for any purpose other than performing the Services.

5. CONFIDENTIAL INFORMATION

5.1 Definition. All information Client provides to Contractor, whether or not marked "confidential"; all information pertaining to the Services; all Contractor Work Product; Client's Intellectual Property; this Agreement; and all information regarding Client's business (including the identity of Client, its affiliates and its customers, actual or anticipated business, research or development, technical data, trade secrets, know-how, product plans, software, source code, designs, marketing, finances, pricing and other business information) disclosed to Contractor by or on behalf of Client or its affiliates will be treated as strictly confidential ("***Confidential Information***") unless and until Client authorises in writing that it may be treated as public. Contractor may disclose Confidential Information only with Client's prior written consent, or as required by law. Information already generally available to the public (other than through Contractor's breach) is not Confidential Information.

5.2 Economic Value. Contractor acknowledges that Confidential Information has independent economic value, actual or potential, is not generally known to the public or to others who could obtain value from its disclosure or use, and is subject to Client's reasonable efforts to maintain its secrecy. Except as essential to its obligations under this Agreement, Contractor will not disclose the terms of this Agreement or any Confidential Information, and will not duplicate or copy Confidential Information.

5.3 Non-Use and Non-Disclosure. During and after the term of this Agreement, Contractor and its employees and any third party engaged by Contractor will not use Confidential Information for any purpose other than performing the Services for Client, and will not deliver, reveal or report any Confidential Information to any government body or agency, or to any other person or entity, without (i) Client's express prior written permission, or (ii) a court or administrative order requiring disclosure. If Contractor believes it is required by law to disclose Confidential Information, or is served with a summons, subpoena or order, Contractor will, before disclosing, immediately notify Client in writing and, at Client's direction, respond to, appeal or challenge it, and cooperate fully with Client in doing so, except where Contractor is required by law to disclose without notice to Client. Contractor will take appropriate measures to ensure the confidentiality and protection of all Confidential Information and to prevent its disclosure or inappropriate use by Contractor, its subcontractors, employees or related entities. These obligations survive expiry or termination of this Agreement.

5.4 Former or Concurrent Clients' Confidential Information. Contractor will not, during the term of this Agreement, improperly use or disclose, or induce Client to use, any confidential information of any third party, including any former or concurrent client of Contractor. Contractor will not bring onto Client's premises or devices, or use in the Services, any confidential information belonging to any third party. Contractor will indemnify Client and hold it harmless from all claims, liabilities, damages and expenses (including reasonable legal fees) arising from any violation or claimed violation of a third party's rights resulting from Client's use of such information as a result of Contractor's acts.

5.5 Third Party Confidential Information. Contractor recognises that Client has received and may receive confidential information of third parties subject to a duty to maintain its confidentiality and use it only for limited purposes. Contractor agrees:

a. that Contractor, its employees and any third party engaged by Contractor owe Client and any such third party, during the term and thereafter, a duty to hold all such confidential or proprietary information in the strictest confidence;

b. to treat any such third-party confidential information as if it were Client's Confidential Information; and

c. not to disclose it to any person, firm, corporation or other entity, or to use it, except as necessary in carrying out the Services for Client consistent with Client's agreement with such third party.

5.6 Return of Materials. All documents and other tangible objects containing or representing Confidential Information, and all copies, in Contractor's possession remain Client's property. Contractor will promptly return all Confidential Information and copies (including electronic copies) to Client on expiry or termination of this Agreement or on Client's earlier request, will keep no copies, and will delete or destroy any copies remaining in its possession once the originals are returned.

6. DATA PROTECTION

6.1 To the extent the Services require Contractor to process Personal Data, Contractor will (and will procure that any subcontractor will) process all Personal Data in accordance with all data protection and privacy laws applicable in the Islamic Republic of Pakistan and, where and as applicable to Client's data or customers, the laws of any other jurisdiction, including the EU General Data Protection Regulation 2016/679 ("**GDPR**") (collectively, the "***Data Protection Laws***"). "***Personal Data***" means any information relating to an identified or identifiable natural person, or as defined under the Data Protection Laws.

6.2 Contractor will fully comply with any reasonable instructions from or on behalf of Client regarding the processing of Personal Data. Each Party will inform the other immediately of any suspected or confirmed Personal Data breach, or unauthorised or unlawful processing, loss, destruction or damage of Personal Data in connection with the Services. To the extent the Services consist of software development, Contractor will develop the software in compliance with the Data Protection Laws.

6.3 Without limiting the generality of this Section 6, Contractor will, and will ensure that its subcontractors and employees will:

a. cooperate fully with Client so that Client can comply with its obligations under the Data Protection Laws (including subject access requests, security, breach notifications, impact assessments and consultations with regulators);

b. implement and maintain appropriate technical and organisational measures against unauthorised and unlawful processing and against accidental loss, destruction or damage of Personal Data;

c. process Personal Data disclosed by or on behalf of Client only (i) for the purposes of providing the Services and (ii) for the purposes for which it was obtained and is processed by Client;

d. promptly provide such evidence of compliance with the Data Protection Laws as Client may reasonably request; and

e. immediately upon notification by Client, take all appropriate action to enable Client to comply with any data subject request relating to access, rectification or erasure of Personal Data.

6.4 Contractor understands and agrees that Client may, in its sole discretion, monitor Client's communications facilities used by Contractor (including email, accounts, tools and devices supplied by Client) to prevent, detect or investigate unauthorised use, wrongdoing, or non-compliance with Client's practices and procedures by Contractor, its employees and subcontractors.

7. WARRANTIES

7.1 No Pre-existing Obligations. Contractor represents and warrants that Contractor (and any subcontractor) has no pre-existing obligations or commitments, and will not undertake any, that would conflict with or hinder performance of Contractor's obligations under this Agreement.

7.2 Performance Standard and Compliance. Contractor covenants that Contractor (and any subcontractor) will perform the Services in a thorough and professional manner, consistent with high professional and industry standards, by individuals with the requisite training, background, experience, technical knowledge and skills. Any deviation in quality will be remedied by Contractor on written notice from Client. Contractor will (and will ensure that any subcontractor will):

a. comply with all laws, regulations and codes relating to anti-bribery and anti-corruption;

b. promptly report to Client any request or demand by a third party for any undue financial or other advantage in connection with this Agreement or Contractor's relationship with Client;

c. not engage in any activity, practice or conduct which would constitute a tax offence, whether in Pakistan or abroad;

d. promptly report to Client any request or demand from a third party to facilitate conduct or omissions that could constitute a tax offence under local law or the law of any foreign country in connection with this Agreement;

e. comply with all applicable laws and policies pertaining to the prevention of discrimination, harassment and bullying; and

f. as required, certify to Client in writing Contractor's compliance with this clause.

7.3 Non-infringement. Contractor represents and warrants that Contractor Work Product does not, and will not, infringe, misappropriate or violate the proprietary rights of any third party, including any Intellectual Property or any rights of privacy or publicity, except to the extent any portion of Contractor Work Product is created, developed or supplied by Client or by a third party on Client's behalf.

7.3A Website Development Warranties. Contractor represents, warrants and covenants that: (a) the websites and software delivered will substantially conform to the specifications in the Statement of Work, will be free from material defects, and will operate in current versions of the major web browsers and devices specified in the Statement of Work; (b) Contractor Work Product will not contain any virus, malware, back door, time bomb, tracking code or other malicious or undisclosed code; (c) Contractor will use third-party and open-source components, fonts, images and plug-ins only under licences that permit Client's intended use and will list all such components and their licences on request, and will not use any open-source component under terms that would require Client's proprietary code to be disclosed; (d) Contractor will follow reasonable security practices (including protection against common web vulnerabilities) and, where specified, accessibility and search-engine-friendly standards; and (e) for ninety (90) days after acceptance of each deliverable (or such other period stated in the Statement of Work), Contractor will correct, at no additional charge, any defect or non-conformity notified by Client.

7.4 Competitive Activities. Client acknowledges that Contractor provides services to other clients. Notwithstanding this, Contractor agrees that during the term of this Agreement Contractor will not, directly or indirectly, engage or participate in, or provide services to, any business that competes with the business conducted by Client, without Client's prior written agreement; except that this Section 7.4 will not apply where prohibited by law.

7.5 Non-Solicitation of Personnel. During the term of this Agreement and for one (1) year thereafter, Contractor will not directly or indirectly solicit the services of any of Client's employees, workers or contractors for Contractor's own benefit or the benefit of any other person or entity. Client will not directly or indirectly solicit

Contractor's employees for Client's own benefit or the benefit of any other person or entity, or attempt to induce such employees, workers or contractors to terminate their employment or contract with Contractor.

8. TERM AND TERMINATION

8.1 Term. This Agreement commences on the Effective Date and remains in force for one (1) calendar year from the Effective Date and is automatically renewed for each subsequent calendar year, unless terminated earlier in accordance with this Agreement or a Statement of Work. It may be renewed an unlimited number of times.

8.2 Termination for Breach. Except as provided below, either Party may terminate this Agreement (including all Statements of Work) if the other Party breaches any material term and fails to cure the breach within ten (10) days of written notice. Client may terminate this Agreement (including all Statements of Work) with immediate notice, and with no liability to make further payments to Contractor (other than amounts accrued before the termination date), if at any time Contractor:

a. commits (or any of its subcontractors commits) gross negligence or intentional misconduct affecting Client's business, including fraud or dishonesty, or material breaches of Client's code of conduct-related rules and policies insofar as applicable to independent contractors (including relating to bribery, corruption, tax evasion, data protection, equality and diversity, and health and safety);

b. commits (or any of its subcontractors commits) any bribery offence;

c. commits (or any of its subcontractors commits) a local or foreign tax evasion facilitation offence; or

d. becomes insolvent or bankrupt, makes arrangements with or for the benefit of its creditors, or has a court order made against it for the benefit of its creditors.

8.3 Termination for Convenience. Either Party may terminate this Agreement (including all Statements of Work) at any time, without assigning any reason, on at least [TERMINATION_NOTICE_PERIOD] written notice to the other Party. Client may also terminate an individual Statement of Work at any time, without assigning any reason, on at least [TERMINATION_NOTICE_PERIOD] written notice to Contractor.

8.4 Termination of Deel Terms and Conditions. This Agreement will automatically terminate on termination of the Deel Terms and Conditions by either Party, or if Deel terminates Client's or Contractor's use of the Deel platform for any reason.

8.5 Effect of Termination. On expiry or termination of this Agreement for any reason: (i) Contractor will promptly deliver to Client all Contractor Work Product, including all work in progress not previously delivered, together with any electronic copies; (ii) Contractor will promptly deliver to Client all Confidential Information in Contractor's possession or control, including any electronic copies; and (iii) Client will pay Contractor any accrued but unpaid fees properly due under Section 2.

8.6 Survival. The rights and obligations of the Parties under Sections 2, 3, 4, 5, 6, 7.3, 7.3A, 7.5, 8.5, 9 and 10 survive expiry or termination of this Agreement, and any Statement of Work, to the maximum period permitted by applicable law.

9. LIMITATION OF LIABILITY

9.1 Nothing in this Agreement excludes or limits either Party's liability for losses incurred by the other Party resulting from: death or personal injury due to the wilful intent or gross negligence of the other Party or its employees, affiliates or subcontractors; a Party's fraud or fraudulent misrepresentation; Contractor's breach of the warranty of non-infringement under Section 7.3; or a Party's breach of applicable law.

9.2 Subject to Section 9.1, neither Party will be liable in contract, tort (including negligence), pre-contract or other representations (other than fraudulent misrepresentation) or otherwise arising out of or in connection with this Agreement for:

a. any economic losses (including loss of revenues, profits, contracts, data, business, anticipated savings or cost of substitute services);

b. any loss of goodwill or reputation; or

c. any special, indirect or consequential losses, whether or not such losses were within the contemplation of the Parties on the Effective Date.

IN NO EVENT WILL EITHER PARTY BE LIABLE FOR ANY SPECIAL, INCIDENTAL, PUNITIVE, EXEMPLARY OR CONSEQUENTIAL DAMAGES OF ANY KIND IN CONNECTION WITH THIS AGREEMENT, EVEN IF THAT PARTY HAS BEEN ADVISED IN ADVANCE OF THE POSSIBILITY OF SUCH DAMAGES. EXCEPT AS OTHERWISE SET OUT IN THIS SECTION 9, EACH PARTY'S MAXIMUM LIABILITY WILL NOT EXCEED THE UNDISPUTED OUTSTANDING BALANCES OWED TO CONTRACTOR.

10. GENERAL

10.1 Assignment. Contractor may not assign, transfer or delegate this Agreement or any of the Services, in whole or in part, without Client's express prior written consent. Any attempt to do so without consent is void. Subject to this, this Agreement binds and benefits the Parties and their respective successors and permitted assigns.

10.2 No Election of Remedies. Except as expressly set out in this Agreement, Client's exercise of any remedy under this Agreement is not an election of remedies and is without prejudice to its other remedies under this Agreement or available at law or in equity.

10.3 Equitable Remedies. Client has the right to enforce this Agreement and any of its provisions by injunction, specific performance or other equitable relief, to the extent permissible under applicable law, without having to post a bond or other consideration, in addition to all other remedies available to it.

10.4 Legal Costs. If any action is necessary to enforce the terms of this Agreement, the prevailing Party is entitled to reasonable legal fees, costs and expenses in addition to any other relief, to the extent permissible under applicable law.

10.5 Governing Law and Jurisdiction. THIS AGREEMENT IS GOVERNED BY AND CONSTRUED IN ACCORDANCE WITH THE LAWS OF THE ISLAMIC REPUBLIC OF PAKISTAN. The Parties will first try to resolve any dispute amicably by good-faith discussion for fifteen (15) days after written notice of the dispute. Failing resolution, any legal action or proceeding arising under this Agreement will be brought exclusively in the competent courts at LAHORE, PAKISTAN, which will have exclusive jurisdiction and venue.

10.6 Severability. If any provision of this Agreement is held invalid or unenforceable by a court of competent jurisdiction, the remaining provisions remain in full force and effect, and the affected provision will be construed so as to be enforceable to the maximum extent permissible by law.

10.7 Waiver. A Party's failure to enforce any provision of this Agreement is not a waiver of future enforcement of that or any other provision.

10.8 Notices. All notices under this Agreement will be in writing, will reference this Agreement, and will be deemed given when delivered by email to the email addresses set out above, or to such other email address as a Party may specify to the other in accordance with this Section 10.8.

10.9 Entire Agreement. This Agreement, together with all Statements of Work, is the complete and exclusive understanding and agreement of the Parties on its subject matter and supersedes all prior understandings and agreements, written or oral. Each Party acknowledges that in entering into this Agreement it does not rely on any statement, representation, assurance or warranty not set out in this Agreement (including any Statement of Work). No term of any Statement of Work amends this Agreement unless the Statement of Work references a specific provision of this Agreement and provides that it amends only that provision and only with respect to Services under that Statement of Work. Any waiver, modification or amendment of this Agreement is effective only if in writing and signed by the Parties. Each Party agrees that it has no claim for innocent or negligent misrepresentation based on any provision of this Agreement.

10.10 No Partnership. This Agreement does not create a partnership or joint venture.

10.11 Counterparts. This Agreement may be executed in counterparts, each of which is an original, and all of which together constitute one and the same instrument.

10.12 Modifications. This Agreement may be modified only by a written contract executed by the Parties.

10.13 Third-Party Rights. The Parties do not intend that any term of this Agreement will be enforceable by any person who is not a Party.

10.14 Stamp Duty. Any stamp duty or similar charge payable on this Agreement under applicable law will be borne by [Client / equally by the Parties].

10.15 Electronic Signatures. Except where prohibited by law, the Parties consent to use Deel's electronic signature service to execute this Agreement, in accordance with the Electronic Transactions Ordinance, 2002, and agree that such signatures are valid and binding on the Parties.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

CLIENT	**CONTRACTOR**
Signature: [CLIENT_SIGNATURE]	Signature: [CONTRACTOR_SIGNATURE]
Date: [CLIENT_SIGNED_AT]	Date: [CONTRACTOR_SIGNED_AT]

EXHIBIT A
STATEMENT OF WORK 1
REF:

DATE: [SIGNED_DATE]

This Statement of Work is issued under and subject to all of the terms and conditions of the Independent Contractor Agreement dated as of [CONTRACT_SIGNED_AT], between Client and Contractor.

Statement of Work Effective Date	[EFFECTIVE_DATE]
Type of Contract	[Fixed price per project / Hourly / Monthly retainer]
Start Date	[START_DATE]
Scope of Work	Website development for [PROJECT / CUSTOMER NAME]: [design / front-end / back-end / CMS / e-commerce / integrations / testing / deployment / maintenance – delete what does not apply]. Deliverables: [pages, features, source code, documentation].
Technology Stack	[e.g. Next.js, WordPress, Shopify, Node.js]
Milestones and Delivery Dates	[Milestone 1 – date; Milestone 2 – date; Final launch – date]
Acceptance Testing	[Client has __ days to test each milestone and report defects]
Warranty / Bug-Fix Period	90 days after acceptance
Hosting, Domain and Credentials	[Provided and controlled by Client / customer – Contractor to hand over all access]
Payment Currency	[PKR / USD]
Payment Rate / Amount	[PAYMENT_RATE]
On-target Payment	[VARIABLE_COMPENSATION]
First Payment Date	[FIRST_PAY_DATE]
Invoice Cycle	[Monthly / On milestone]
Payment Due	[PAYMENT_DUE]
Pay Before Weekends	No
Contract End Date	[END_DATE / Not specified]
Termination Notice Period	[TERMINATION_NOTICE_PERIOD]
Special Clauses	

CLIENT

Signature: [CLIENT_SIGNATURE]

Date: [CLIENT_SIGNED_AT]

CONTRACTOR

Signature: [CONTRACTOR_SIGNATURE]

Date: [CONTRACTOR_SIGNED_AT]